

LEASE

of Unit 3, Barton Dock Business Park.

Dated 13 February 2023.

Hallam & Pryce, managing agents for the Landlord.

Reference HP/NE/0002.

1. Parties.

1.1 This Lease is made on 13 February 2023 between the parties described in this clause.

1.2 The Landlord is Rochdale Canal Estates Limited, a company registered in England and Wales with company number 01978344, whose registered office is at 9 Dale Street, Manchester M1 1JA.

1.3 The Tenant is Warrington Medical Supplies Limited, a company registered in England and Wales with company number 07370089, whose registered office is at The Old Bank, 3 Market Street, Bury BL9 0AJ.

1.4 The Landlord and the Tenant confirm that they have each taken independent legal advice on the terms of this Lease before executing it. Each party is referred to in this Lease by the description given above, and each such description includes that party's successors in title and assigns and, in the case of an individual, personal representatives.

1.5 The Guarantor is Warrington Holdings Limited, a company registered in England and Wales with company number 05179843.

1.6 This Lease is executed as a deed and the parties intend it to take effect as such on the date stated above, whether or not it is dated by hand on that date.

2. Definitions.

2.1 "Building" means the building described in clause 3 (Demise and Term), including all additions and alterations to it and the land on which it stands.

2.2 "Common Parts" means the entrance halls, corridors, staircases, lifts, landings, toilets, car parks, service roads, landscaped areas and other parts of the Building which are provided by the Landlord for the common use of the tenants and occupiers of the Building.

2.3 "Encumbrances" means the matters affecting the Premises which are registered against the Landlord's title at the date of this Lease, so far as they are still subsisting and capable of taking effect.

2.4 "Insured Risks" means fire, lightning, explosion, storm, flood, earthquake, subsidence, riot, civil commotion, malicious damage, impact by vehicles or aircraft, bursting or overflowing of water tanks and pipes, and such other risks as the Landlord may from time to time reasonably decide to insure against.

2.5 "Insurance Rent" means the sums which the Landlord spends on insuring the Building against the Insured Risks and against loss of Rent for three years, together with the cost of any valuation for insurance purposes.

2.6 "Landlord's Surveyor" means any person appointed by or acting for the Landlord to perform the function of a surveyor for any purpose of this Lease.

2.7 "Permitted Use" means the use permitted by clause 7 (Use) and no other use.

2.8 "Plan" means the plan annexed to this Lease.

2.9 "Premises" means the premises described in clause 3 (Demise and Term), including the Landlord's fixtures and fittings in them and all additions and improvements made to them.

2.10 "Quarter Days" means 25 March, 24 June, 29 September and 25 December in every year.

2.11 "Rent" means the Initial Rent as reviewed in accordance with clause 5 (Rent Review).

2.12 "Review Date" means the date specified as such in clause 5 (Rent Review).

2.13 "Service Charge Year" means the period of twelve months ending on 31 December in every year, or such other period as the Landlord may from time to time notify to the Tenant.

2.14 "Term" means the term of years granted by clause 3 (Demise and Term), together with any continuation of that term by statute or at common law.

2.15 "Term Commencement Date" means the date on which the Term commences under clause 3 (Demise and Term).

2.16 "Use Classes Order" means the Town and Country Planning (Use Classes) Order 1987 as it applies at the date of this Lease.

2.17 "Utilities" means water, gas, electricity, telecommunications and any other services supplied to the Premises.

2.18 "VAT" means value added tax chargeable under the Value Added Tax Act 1994 and any similar or replacement tax.

2.19 If any provision of this Lease is held to be invalid or unenforceable, the remaining provisions shall continue in full force and effect. The clause headings do not affect the interpretation of this Lease.

2.20 Any reference to the Landlord includes the person for the time being entitled to the reversion immediately expectant on the end of the Term.

3. Demise and Term.

3.1 The demise excludes the roof, the foundations, the structural walls and the Conduits of the Building which serve other premises, but includes the internal non-structural walls, the floor finishes, the ceilings and the internal surfaces of the structural walls.

3.2 The Landlord lets the Premises to the Tenant with full title guarantee, together with the rights set out in Schedule 1, excepting and reserving to the Landlord the rights set out in Schedule 2, and subject to the Encumbrances.

3.3 The Building is Barton Dock Business Park, Barton Dock Road, Trafford Park, Manchester M41 7ZA.

3.4 The Tenant shall permit the Landlord and the Landlord's Surveyor to enter the Premises on reasonable notice to inspect their condition, to take measurements, and to carry out any works which the Landlord is entitled to carry out under this Lease.

3.5 The Premises are known as Unit 3, Barton Dock Business Park and are shown edged red on the Plan.

3.6 The Premises are let for a term of 10 years (the Term).

3.7 If any part of the Premises is destroyed or damaged so as to be unfit for occupation and use, the Rent shall be suspended in accordance with clause 9 (Insurance) until the Premises have been reinstated. The Tenant shall not be entitled to any rights of light or air or other easements over any adjoining property of the Landlord except those expressly granted by this Lease.

3.8 The Landlord reserves the right to alter the Common Parts, to erect or alter buildings on adjoining land, and to grant rights over the Building to third parties, provided that the Tenant's use of the Premises is not materially prejudiced.

3.9 The Landlord confirms that it has the power to grant this Lease and that the Premises are not subject to any restriction which would prevent their use for the Permitted Use. The Term Commencement Date shall be the date from which the Term is calculated for every purpose of this Lease, whether or not the Tenant has taken occupation by that date.

3.10 The parties agree that sections 24 to 28 of the 1954 Act shall not apply to the tenancy created by this Lease, the Landlord having served notice on the Tenant and the Tenant having made a statutory declaration before the parties became contractually bound. The Tenant acknowledges that the Premises are let in their present condition and that the Landlord has made no representation as to their fitness for the Permitted Use. The Tenant shall not obstruct the Common Parts, nor leave any goods, vehicles or refuse in them, nor use them for any purpose other than access.

3.11 The Term shall commence on 1 March 2023 and shall expire on 28 February 2033.

4. Rent.

4.1 The Tenant shall pay all rates, taxes, assessments and outgoings of every kind which are charged or assessed on the Premises or on the owner or occupier of them, other than any tax payable by the Landlord on the receipt of the Rent or on any dealing with the reversion. The Tenant shall pay a fair proportion, determined by the Landlord's Surveyor, of the cost of maintaining, repairing and renewing any party walls, fences, roads, Conduits and other things used in common with other premises. The Tenant shall pay the Landlord's proper and reasonable costs of preparing and serving any schedule of dilapidations at any time during or within three months after the end of the Term.

4.2 The Initial Rent is £173,250 (one hundred and seventy-three thousand two hundred and fifty pounds) per annum.

4.3 If any Rent or other sum is not paid within fourteen days after the date on which it falls due, the Tenant shall pay Interest on it from the due date until the date of actual payment. The Landlord shall provide the Tenant with a written demand for each payment of Rent not less than fourteen days before the date on which it falls due, but a failure to do so shall not relieve the Tenant of the obligation to pay on that date.

4.4 The Tenant shall pay for all Utilities consumed at the Premises, including any standing charges, meter rents and connection charges, and shall comply with the requirements of the supplying authorities.

4.5 All sums payable by the Tenant under this Lease are exclusive of VAT, which the Tenant shall pay in addition where it is chargeable, against receipt of a valid VAT invoice. The Rent and all other sums payable under this Lease shall be paid without any deduction, counterclaim or set-off, whether legal or equitable, save as required by law.

4.6 The Landlord may, at its discretion and on giving not less than one month's notice to the Tenant, vary the dates on which the Rent is payable, provided that the Rent remains payable in advance. The Tenant shall pay the Rent by banker's standing order or by such other method as the Landlord may reasonably require from time to time.

4.7 The Rent Commencement Date is 1 June 2023.

4.8 The Service Charge payable by the Tenant for the first Service Charge Year shall not exceed £20,750.

4.9 For the avoidance of doubt, the rent reserved by the previous lease of the Premises, being £136,750 per annum, is superseded by this Lease.

4.10 The Tenant shall pay the Rent by equal quarterly payments in advance on the Quarter Days, the first payment being a proportionate sum for the period from the date on which the Rent first becomes payable to the next Quarter Day. Where any Utility is supplied to the Premises through a meter serving other premises as well, the Tenant shall pay a fair proportion of the cost as determined by the Landlord's Surveyor.

4.11 The Tenant shall also pay to the Landlord as rent the Service Charge, the Insurance Rent and any VAT chargeable on them, on the dates and in the manner set out in this Lease.

5. Rent Review.

5.1 The independent surveyor shall act as an expert and not as an arbitrator, shall give both parties the opportunity to make written representations, and shall give reasons for the determination. Any dispute about the reviewed Rent shall be referred to an independent surveyor, to be agreed between the parties or, failing agreement, to be appointed on the application of either party by the President of the Royal Institution of Chartered Surveyors. The Rent shall be reviewed on the Review Date in accordance with this clause, and from the Review Date the Rent shall be the amount determined under this clause.

5.2 The Review Basis is RPI.

5.3 If the Review Date falls at a time when the Rent is suspended under clause 9 (Insurance), the review shall nevertheless proceed on the assumption that the Premises are fit for occupation and use.

5.4 On the Review Date the Rent shall be increased in the same proportion as the Retail Prices Index published by the Office for National Statistics has increased between the month preceding the

Term Commencement Date and the month preceding the Review Date. A memorandum recording the reviewed Rent shall be signed by or on behalf of the Landlord and the Tenant and annexed to this Lease and its counterpart, each party bearing its own costs.

5.5 The Review Date is 1 March 2028.

5.6 The reviewed Rent shall be rounded up to the nearest whole pound.

5.7 The Rent shall not be reduced on review, and if the reviewed Rent would be less than the Rent payable immediately before the Review Date the Rent shall remain unchanged. If the reviewed Rent has not been agreed or determined by the Review Date, the Tenant shall continue to pay Rent at the rate payable immediately before the Review Date, and within fourteen days after the reviewed Rent is agreed or determined the Tenant shall pay the shortfall together with interest at the base rate from time to time of the Bank of England. Time shall not be of the essence for any of the steps in the review procedure, and neither party shall be prejudiced by any delay in initiating or pursuing the review.

5.8 The costs of the independent surveyor shall be borne as the surveyor directs or, in the absence of a direction, equally between the parties.

6. Repair.

6.1 Any damage to the Premises caused by an Insured Risk shall be excluded from the Tenant's repairing obligations unless the insurance has been vitiated by the act or default of the Tenant. The Landlord shall not be liable to the Tenant for any failure or interruption of any of the services provided to the Building which is caused by circumstances beyond the Landlord's reasonable control, provided that the Landlord uses reasonable endeavours to restore the service.

6.2 The repairing basis of this Lease is full repairing.

6.3 The Tenant shall not make any structural alteration or addition to the Premises, nor any alteration to the exterior or the appearance of the Premises, nor any internal non-structural alteration without the prior written consent of the Landlord, which shall not be unreasonably withheld.

6.4 The Tenant shall keep the Premises free from vermin and infestation and shall pay the cost of any treatment which the Landlord reasonably requires. The Tenant shall not do anything which would overload the floors, the structure or the Conduits of the Building, and shall not bring onto the Premises any machinery or equipment which is unduly heavy or which causes vibration. The Tenant shall keep any plate glass in the Premises insured against breakage in the joint names of the Landlord and the Tenant and shall replace any broken glass with glass of the same quality as soon as reasonably practicable.

6.5 The Tenant shall at the end of the Term yield up the Premises in the state of repair and condition required by this Lease, having removed any alterations which the Landlord requires to be removed and made good any damage caused by their removal. The Tenant shall keep the whole of the Premises, including the structure, the roof, the foundations, the exterior and the Conduits exclusively serving the Premises, in good and substantial repair and condition, and shall rebuild, renew or replace any part which cannot be repaired.

6.6 The Tenant's obligation extends to defects which exist at the date of this Lease and to inherent defects in the design or construction of the Premises, whether or not they were known to either party at that date. The Tenant shall comply with all statutes, regulations and requirements of any competent authority relating to the Premises or their use, and shall indemnify the Landlord against all liability arising from any breach.

7. Use.

7.1 The Tenant shall comply with all reasonable regulations made by the Landlord from time to time for the management of the Building and the Common Parts, provided that they have been notified to the Tenant in writing. The Tenant shall keep the Premises open for business during the usual business hours of the locality unless prevented by circumstances beyond the Tenant's control.

7.2 The Tenant shall not load or unload goods except at the loading areas designated by the Landlord and shall not park vehicles other than in the spaces, if any, allocated to the Premises. The Tenant shall not apply for planning permission for any change of use of the Premises without the prior written consent of the Landlord.

7.3 The Tenant shall not store on the Premises any hazardous, flammable or explosive substance, other than reasonable quantities of cleaning materials and fuel for permitted equipment stored in accordance with the relevant regulations. The Tenant shall not permit any person to sleep on the Premises, nor allow the Premises to be used for residential purposes.

7.4 The Tenant shall not use the Premises for any illegal or immoral purpose, nor for any auction, public meeting or show, nor for any purpose which is noisy, offensive or dangerous or which causes a nuisance to the Landlord or to the tenants or occupiers of adjoining premises.

7.5 The Permitted Use is storage and distribution within Class B8 of the Use Classes Order.

7.6 The Tenant shall not play or permit to be played any music or sound amplification which is audible outside the Premises.

7.7 The Tenant shall not display any sign, advertisement or notice on the exterior of the Premises or in the windows so as to be visible from outside without the prior written consent of the Landlord, which shall not be unreasonably withheld in the case of a sign displaying the Tenant's name and business.

8. Alienation.

8.1 The Tenant may underlet the whole of the Premises with the prior written consent of the Landlord, at a rent not less than the open market rent of the Premises, without taking a fine or premium, and by an underlease which excludes the security of tenure provisions of the 1954 Act. Within one month after any assignment, underletting, charge or devolution of the Premises, the Tenant shall give the Landlord notice of it together with a certified copy of the relevant document and shall pay the Landlord's reasonable registration fee. The Tenant shall not assign, underlet, charge, part with possession or share occupation of the whole or any part of the Premises except as expressly permitted by this clause.

8.2 The Tenant may share occupation of the Premises with a Group Company, provided that no relationship of landlord and tenant is created and that the Tenant notifies the Landlord of the arrangement in writing before it begins. It shall be a condition of any assignment that the Tenant enters into an authorised guarantee agreement in the form reasonably required by the Landlord, guaranteeing the performance of the Tenant's covenants by the assignee.

8.3 The Tenant shall not charge any part of the Premises, but may charge the whole of the Premises with the prior written consent of the Landlord, which shall not be unreasonably withheld. The Landlord may withhold consent to an assignment if the proposed assignee is not, in the Landlord's reasonable opinion, of sufficient financial standing to comply with the Tenant's covenants, or if there are arrears of Rent or any other subsisting breach of the Tenant's obligations.

8.4 The Landlord shall be entitled to require, as a condition of giving consent to an assignment, that the assignee provides a guarantor or a rent deposit acceptable to the Landlord where the assignee's financial standing reasonably requires it. For the purposes of section 19(1A) of the Landlord and Tenant (Covenants) Act 1995, the parties agree that the conditions and circumstances set out in this clause are reasonable.

9. Insurance.

9.1 The Tenant shall insure its own fixtures, fittings, stock and contents and shall maintain public liability insurance in respect of the Premises with a limit of indemnity of not less than five million pounds for any one occurrence. The Tenant shall comply with all requirements and recommendations of the insurer and shall notify the Landlord as soon as it becomes aware of any damage to the Premises by an Insured Risk.

9.2 If the Premises have not been reinstated so as to be fit for occupation and use within three years after the date of the damage, either party may end this Lease by giving the other not less than one month's written notice, and the insurance money shall belong to the Landlord. If the Premises or the Building are damaged or destroyed by an Insured Risk so as to be unfit for occupation and use, the Rent, or a fair proportion of it according to the extent of the damage, shall be suspended until the Premises are again fit for occupation and use or until the expiry of the period for which loss of Rent is insured, whichever is the earlier.

9.3 The Landlord shall use the insurance money received, other than in respect of loss of Rent, to reinstate the Premises as soon as reasonably practicable, subject to obtaining all necessary consents and to the Landlord not being prevented by any cause beyond its control. If the insurance money is irrecoverable in whole or in part because of any act or default of the Tenant, the Tenant shall pay the Landlord the irrecoverable amount on demand. Where damage is caused by an Uninsured Risk, the Landlord may elect, by notice to the Tenant within six months of the damage, either to reinstate the Premises at its own cost or to end this Lease, in which case the Rent shall be suspended from the date of the damage.

9.4 The Landlord shall insure the Building, other than tenant's fixtures and fittings, against the Insured Risks in the full cost of reinstatement, with a reputable insurer and subject to such excesses, exclusions and conditions as the insurer may require. The Tenant shall pay the Insurance Rent

within fourteen days of demand, the first payment being a proportionate sum for the period from the Term Commencement Date to the next renewal date of the policy.

9.5 The Landlord shall, on request and not more than once in any year, produce to the Tenant evidence of the terms of the insurance policy and of payment of the current premium.

10. Break Clause.

10.1 Any Rent paid in advance for a period after the break date shall be refunded to the Tenant within one month after the break date. The Landlord may waive any condition of the break by notice in writing to the Tenant, but no condition shall be treated as waived by conduct.

10.2 The Tenant may exercise the break only if, on the break date, the Tenant has paid all of the Rent which has fallen due and gives vacant possession of the whole of the Premises to the Landlord. The break notice shall be served in writing in accordance with the notice provisions of this Lease and shall be irrevocable once served.

10.3 The Tenant may determine this Lease on 29 February 2028 by giving the Landlord not less than 6 months' prior written notice.

10.4 Time shall be of the essence for the service of the break notice and for the satisfaction of the conditions attached to it.

11. Deposit.

11.1 The Landlord shall release the balance of the Deposit to the Tenant within one month after the end of the Term, or after any earlier lawful assignment of this Lease, provided that the Tenant has complied with its obligations and there are no outstanding claims by the Landlord. If the Tenant fails to pay any Rent or other sum within fourteen days after it falls due, or is otherwise in breach of this Lease, the Landlord may withdraw from the Deposit such amount as is required to make good the default and shall give the Tenant written notice of the withdrawal. If the Landlord assigns its interest in the Premises, it shall transfer the Deposit to the assignee and shall procure that the assignee holds it on the terms of this clause, whereupon the Landlord shall be released from its obligations in respect of the Deposit.

11.2 The Landlord shall hold the Deposit in a separate interest-bearing account as security for the performance of the Tenant's obligations under this Lease, and any interest earned shall be added to the Deposit. The Deposit shall not be treated as a payment of Rent in advance, and the Tenant shall not withhold any payment of Rent on the ground that the Landlord holds the Deposit.

11.3 The Deposit is £86,600 (eighty-six thousand six hundred pounds), which the Tenant shall pay to the Landlord on the date of this Lease.

11.4 The Landlord's rights under this clause are in addition to and not in substitution for any other right or remedy available to the Landlord.

12. Guarantee.

12.1 The Guarantor's liability shall not be released, reduced or affected by any time or indulgence granted by the Landlord to the Tenant, by any variation of this Lease, or by any change in the constitution of the Tenant or the Guarantor. Any payment made by the Guarantor shall be made without set-off or counterclaim, and the Guarantor shall not claim in competition with the Landlord in the insolvency of the Tenant until the Landlord has been paid in full.

12.2 The Guarantor waives any right to require the Landlord to proceed against the Tenant or to pursue any other remedy before enforcing the guarantee.

12.3 If this Lease is disclaimed on the insolvency of the Tenant, the Guarantor shall, if the Landlord so requires within six months after the disclaimer, accept a new lease of the Premises for the residue of the Term on the same terms as this Lease. The guarantee shall continue until the Tenant is released from its obligations under this Lease by statute, and shall then extend to any authorised guarantee agreement entered into by the Tenant.

12.4 The Guarantor guarantees to the Landlord that the Tenant shall pay the Rent and all other sums payable under this Lease and shall perform and observe the Tenant's covenants, and the Guarantor shall indemnify the Landlord against all losses arising from any default by the Tenant.

13. VAT.

13.1 The Tenant shall pay VAT on the Rent and on every other sum payable under this Lease where VAT is chargeable, at the same time as the sum on which it is chargeable, against a valid VAT invoice.

13.2 Where the Landlord has waived the exemption from VAT, the Tenant shall not do anything which would cause the waiver to be disapplied, and shall indemnify the Landlord against any loss arising from a breach of this obligation. The Landlord shall provide the Tenant with a valid VAT invoice for every payment of Rent and other sums on which VAT is chargeable.

13.3 The Landlord has elected to waive the exemption from VAT in respect of the Building.

13.4 Nothing in this Lease shall prevent the Landlord from making, revoking or varying an election to waive the exemption from VAT in respect of the Building, and the Landlord shall notify the Tenant in writing within one month of doing so. Every sum payable under this Lease is expressed exclusive of VAT, and any reference in this Lease to a sum, a cost or an expense includes any VAT which is payable on it and which is not recoverable by the payer.

14. Notices.

14.1 A notice served by post shall be treated as served on the second Working Day after posting, and a notice served by hand shall be treated as served on the day it is delivered, or on the next Working Day if delivered after four o'clock in the afternoon. Any notice under this Lease shall be in writing and shall be served by hand or by recorded delivery post at the registered office of the party to be served, or at such other address as that party may have notified in writing for the purpose.

14.2 The Tenant shall give the Landlord written notice of any change to the Tenant's registered office or principal place of business within fourteen days of the change. Notice may not be validly

served by email or by any other electronic means unless the parties have agreed in writing to accept service in that manner.

14.3 Nothing in this Lease shall give the Tenant any right to renew it, and the Tenant acknowledges that it has taken independent legal advice on the effect of the exclusion of the security of tenure provisions of the 1954 Act. A person who is not a party to this Lease has no right under the Contracts (Rights of Third Parties) Act 1999 to enforce any of its terms.

14.4 This Lease is governed by the law of England and Wales, and the courts of England and Wales have exclusive jurisdiction to determine any dispute arising out of it. This Lease, together with any documents annexed to it, contains the whole agreement between the parties relating to the Premises and supersedes any earlier agreement, arrangement or understanding between them.

Schedule 1. Rights Granted.

1. The right to display the Tenant's name on the directory board in the entrance hall of the Building in the style approved by the Landlord.
2. The right of support and protection for the Premises from the other parts of the Building.
3. The right to pass and repass on foot and, where appropriate, with vehicles over the Common Parts and the access roads serving the Building for the purpose of gaining access to and egress from the Premises.
4. The right to use the Conduits serving the Premises for the passage of Utilities, subject to the Landlord's right to re-route them on giving reasonable notice.
5. The right to use the car parking spaces, if any, allocated to the Premises by the Landlord from time to time, for the parking of private motor vehicles only.
6. The right to use the refuse storage area designated by the Landlord for the storage of refuse pending collection.
7. The right, on reasonable notice and subject to making good all damage, to enter the Common Parts to carry out any works which the Tenant is obliged or permitted to carry out under this Lease.

Schedule 2. Rights Reserved.

1. The right to enter the Premises on reasonable notice, or without notice in an emergency, to inspect, repair, clean, alter or renew any adjoining premises or the Conduits.
2. The right to erect scaffolding on or against the Building for the purpose of repairing or cleaning it, provided that access to the Premises is maintained.
3. The right, during the last six months of the Term, to enter the Premises with prospective tenants and to display a notice advertising the Premises for letting.
4. The right to fix and maintain on the exterior of the Premises any sign, aerial, satellite dish or plant serving the Building, provided that it does not materially interfere with the Tenant's use of the Premises.

5. The right to build on, alter or develop any adjoining property of the Landlord in any manner, even if the access of light or air to the Premises is reduced, provided that the Tenant's use of the Premises is not materially interfered with.
6. The right to use the Conduits in the Premises for the passage of Utilities to and from other parts of the Building.
7. The right of support and protection for the other parts of the Building from the Premises.

Schedule 3. Services.

1. Complying with any statutory requirement relating to the Building or the Common Parts and with the requirements of the insurers.
2. Providing, maintaining and renewing lifts, fire alarms, security systems and other plant serving the Building.
3. Repairing, maintaining, cleaning, lighting and, where appropriate, heating the Common Parts and the structure and exterior of the Building.
4. Insuring the Building and the plant in it against the Insured Risks and against third party liability, so far as not recovered through the Insurance Rent.
5. Any other service which the Landlord reasonably considers to be for the benefit of the tenants and occupiers of the Building generally.
6. Maintaining a reserve fund for the anticipated cost of replacing plant and carrying out major works of repair to the Building over the Term.